



**153rd GENERAL ASSEMBLY
FISCAL NOTE**

BILL:	SENATE BILL NO. 17
SPONSOR:	Senator Townsend
DESCRIPTION:	AN ACT TO AMEND TITLE 10, TITLE 11, AND TITLE 19 OF THE DELAWARE CODE RELATING TO CRIME VICTIMS AND WITNESSES.

Assumptions:

1. This Act becomes effective upon signature by the Governor.
2. This Act revises the Victims' Bill of Rights and the Victims' Compensation Assistance Program to codify existing practices or create new rights and responsibilities. In addition, it extends these rights to more victims, adds additional offenses to the definition of "crime" within 11 Del. C. c. 94, and includes any offense that is the basis for abuse, domestic violence, or a sexual violence protective order.
3. This Act provides victims with the right to have a victim advocate present, if available, for all proceedings related to the crime and provide other victim services. The Department of Justice (DOJ) anticipates that upon passage of this Act, it would need additional personnel to coordinate regular Victims' Bill of Rights training and compliance duties statewide among the Victim Service Specialist teams and continue its ability to offer victim advocates, or victim services professionals, to victims of crime with the expansion of the additional offenses. The DOJ estimates that to comply with this Act, it would require 4.0 FTE, Victim Service Specialists to be deployed statewide and anticipates that a portion of one (0.75) of the Victim Service Specialists could be funded using Appropriated Special Funds (ASF) while the remaining (3.25) would require appropriations from the General Fund (GF).
 - a. Recurring GF Costs – \$245,090 in the Fiscal Year 2026 Personnel Costs, including OECs (at a rate of 33.34%), for 3.25 FTE, Victim Service Specialists.
 - b. Recurring ASF Costs – \$56,559 in the Fiscal Year 2026 Personnel Costs, including OECs (at a rate of 33.34%, for 0.75 FTE, Victim Service Specialist.
 - c. One-Time GF Costs – \$26,680 for projected technology equipment and furniture costs related to the startup of these positions.
4. To comply with this Act, The Delaware Criminal Justice Information System (DELJIS) would be required to make programming changes and develop electronic mail notification functionality within the Criminal Justice Information System (CJIS) interface. DELJIS estimates that developing this functionality and associated system enhancements within the CJIS will require one-time funding of \$110,000 and an additional annual cost of \$12,000 to support ongoing maintenance.
5. The Department of Correction (DOC) would be required to make programming changes to its Delaware Automated Correction System (DACS) for enhancements and modifications to its Victim Notification module to support the electronic mail notification functionality to comply with this Act. DOC estimates the development of this functionality and associated system enhancements within the DACS to require one-time funding of \$40,000.
6. Lastly, the Fiscal Year 2026 personnel costs have been estimated for nine months of funding, with the annualization of the remaining three months incorporated into the subsequent year estimates. Additionally, a 2% inflation cost has been included for projected increases in salary and OECs.

Cost:

	<u>One-Time</u>	<u>General Fund</u>	<u>Appropriated Special Fund</u>
Fiscal Year 2026:	\$176,680	\$245,090	\$56,559
Fiscal Year 2027:		\$345,322	\$76,921
Fiscal Year 2028:		\$351,989	\$78,459